

26STCV13380 26STCV13380

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Case Number: 26STCV13380 Hearing Date: August 28, 2026 Dept: 510

No. 9 - Gilbert M. Lagac v. 1036

Genesee LLC, et al.

Plaintiff Gilbert M. Lagac's Motion for Leave to File Second Amended Complaint

Plaintiff Gilbert M.

Lagac moves for leave to file his second amended complaint to remove causes of action for punitive damages, "harassment and request for TRO," and attempted wrongful eviction, and add new claims for intentional infliction of emotional distress, continuing nuisance, and retaliatory eviction.

Code of Civil Procedure section 473(a)(1) provides, "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." Courts exercise their discretion "liberally to permit amendment," and "[t]he policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) A motion for leave to amend will normally be granted unless (a) the party seeking to amend has delayed bringing the proposed amendment; and (b) the delay in seeking leave to amend will cause prejudice to an opposing party. (Hirsa v. Superior Court (1981) 118 Cal.App.3d 486, 490.)

Defendants David Davoodian and Earth Properties LLC argue that the Plaintiff does not provide an adequate explanation for the delay in amending the first amended complaint. However, while Plaintiff arguably could have amended the first amended complaint sooner, that does not mean his delay caused any undue prejudice to Defendants. Plaintiff filed his initial complaint on April 27, 2026, and first amended complaint on May 1, 2026. The Court will

therefore permit Plaintiff to file the second amended complaint. The case is still at the pleading stage and trial has not been set.

The Court acknowledges the Plaintiff submitted a “corrected” proposed second amended complaint one day after Defendants Davoodian and Earth Properties LLC filed their opposition. Plaintiff requests the Court to consider this pleading when ruling on the motion. For the sake of efficiency, the Court exercises its discretion to do so. The “corrected” proposed second amended complaint does not substantively add to the original proposed second amended complaint. It merely removes the retaliatory eviction cause of action and narrows the Defendants against whom the intentional infliction of emotional distress claim is asserted. The changes made in the “corrected” proposed second amended complaint therefore would not have changed the arguments Defendants raised or could have raised in their opposition.

Disposition

Plaintiff Gilbert M. Lagac's motion for leave to file a second amended complaint is granted. Plaintiff is ordered to file the corrected proposed second amended complaint, attached as Exhibit 1 to the Declaration of Lagac in Support of Lodgment of Corrected Proposed Second Amended Complaint, without blackline, forthwith. The demurrers and motions to strike calendared for September 23, 2026, are moot and ordered taken off calendar.